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18 July 2025

Workforce Appeals Board
P.O. Box 45244
Salt Lake City, Utah 84145-0244

Re: Appeal of ALJ Decision — Case Nos. 25-B-00327 / 25-A-05051

I. Introduction

The Administrative Law Judge's decision dated July 9, 2025, erroneously characterizes Granite School District's ("Granite") employer-initiated lock-out as a voluntary quit, improperly shifts the burden of proof onto the Appellant, and relies on inconclusive testimony which the ALJ himself explicitly acknowledged. A review of the certified hearing transcript demonstrates that Granite proactively deactivated Mr. Golub's employment credentials on May 5, 2025, without prior notice or justification. Reversal—or alternatively, a remand for a new hearing with full disclosure—is compelled.

I. Introduction

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without prior notice or justification. Reversal—or alternatively, a remand for a new hearing with full disclosure—is compelled.

II. Statement of Facts

Employer Lock-out Without Prior Notice

On May 5, 2025, Granite disabled Mr. Golub's access to the Frontline employment portal, barring him from substitute teaching. Granite's witness, Wyatt Bentley, explicitly testified that Granite locked substitutes out of the system pending internal reviews (Transcript, p.16, ll.17–26). However, Mr. Bentley conceded under oath that Granite had not made any decision regarding Mr. Golub's discharge at that time (Tr. p.16, ll.24–6).

Granite's Admission of No Same-Day Notification

Asked explicitly whether Granite sent Mr. Golub the customary notification email about the deactivation on May 5, Mr. Bentley admitted, "I don't have the date that it was sent out" and acknowledged he was uncertain whether such notice had actually been sent (Tr. p.17, ll.2–6). Despite multiple inquiries from Mr. Golub between May 5 and May 13, Granite failed to respond. There was no email, notice, or phone correspondence with the Granite School District. Mr. Golub had been ghosted.

Granite's Procedural Ambiguity and Evasiveness

Mr. Bentley, describing Mr. Golub's employment status, gave testimony so unclear it amounts to evasion, stating ambiguously: "With our hourly employees or our substitutes, we don't necessarily consider probation... I guess it would be an informal probation, but not

necessarily something that's formal, no" (Tr. p.16, ll.31–34). Such testimony underscores Granite's lack of procedural clarity, supporting Mr. Golub's reasonable belief that his employment had been terminated.

Mr. Bentley Admits Lack of Specificity Regarding Alleged Resignation

Mr. Bentley explicitly admitted under oath that he could not recall Mr. Golub's exact words during their conversation, stating, "I don't remember the exact wording" (Tr. p.19, ll.4–10). The ALJ subsequently affirmed, "he's already said he doesn't remember exactly what you said" (Tr. p.20, ll.7–11). Thus, there is no competent testimony supporting Granite's claim of resignation.

Procedural Due Process Violation – Exclusion of Appellant's Exhibits

The ALJ excluded critical evidence submitted by Mr. Golub, prejudicing his ability to present a full defense (Tr. p.6, ll.3-8). Most importantly, Granite had access to the full record but selectively released specific emails, thus placing the appellant at a procedural disadvantage.

Continued Attachment to the Labor Market

Since May 18, 2025, Mr. Golub has maintained active job searches, filing weekly claims and submitting over 100 employment applications, satisfying the equity and good-conscience requirement.

III. Legal Argument

Employer-Initiated Separation

Under Utah Admin. Code R994-405-201, a separation is employer-initiated if the employer controls the last day worked. Granite's unilateral lock-out clearly constitutes such a

separation, paralleling the precedent set by *Clearfield City v. Department of Employment Security*, 663 P.2d 440 (Utah 1983).

No Competent Proof of Voluntary Resignation

Utah Admin. Code R994-405-105 places the burden of proof on the employer to show voluntary resignation. Mr. Bentley's admitted inability to recall Mr. Golub's exact words (Tr. p.19, ll.4-10; p.20, ll.7-11) undermines Granite's assertion of voluntary resignation, failing to satisfy this burden.

Just-Cause Elements Unmet

According to *Kehl v. Board of Review*, 700 P.2d 1129 (Utah 1985), Granite bears the burden of establishing just-cause elements—culpability, knowledge, and control. The transcript offers no proof of these elements against Mr. Golub.

Procedural Due-Process Error

The exclusion of Mr. Golub's timely evidence violated his procedural due-process rights, resulting in reliance on incomplete and misleading employer documentation.

Equity and Good Conscience

Even if labeled a voluntary quit, Mr. Golub meets the equity standard under R994-405-103 by actively searching for employment and filing timely benefit claims.

May 5 and Harassment at Taylorsville Elementary

The Taylorsville Principal's demand that Mr. Golub submit immediately to a blood test at Taylorsville Elementary violates Utah Code § 34-38-6 and Granite Policy IX.A.1.b, creating a

hostile environment that justified Mr. Golub's belief that his employment was effectively terminated.

IV. Relief Requested

Mr. Golub respectfully requests:

1. The reversal of the ALJ's decision and allowance of unemployment benefits, retroactive to the week ending May 18, 2025; or
2. A remand for a new, fair hearing instructing full discovery of Granite's email records from May 1–15, 2025, and to subpoena all relevant witnesses regarding the May 5 incident involving the police at Taylorsville Elementary.

Respectfully submitted,

Peter Golub, Appellant-Claimant

Attachments

A. Certified July 8 2025 Hearing Transcript (excerpts highlighted)

B. Screenshot—Frontline "Credentials Disabled" (5 May 2025)

C. Granite Deactivation E-mail (10 May 2025)